

MEMORANDUM OF UNDERSTANDING

Strategic Technology Partnership & Conditional Equity Agreement

BETWEEN:

INFINITE FUTURE BANK ("IFB" / "DEUS Platform") A financial technology platform and neobanking ecosystem serving emerging markets across Africa and beyond. Represented by: **Sapiens Ndatabaya**, Founder & Chief Executive ("Party A" / "Acquiring Party")

AND:

MFIAT TECHNOLOGY LIMITED ("MFIAT") A registered technology company holding an active Flutterwave merchant account under the name MFIAT TECHNOLOGY LIMITED, licensed for payment processing and API-based financial services. Represented by: **Emeka Ojobo**, Authorized Representative ("Party B" / "Technology Partner")

RECITALS

WHEREAS, IFB operates a multi-app neobanking platform (DEUS) serving users across Sub-Saharan Africa and requires programmatic access to Flutterwave's V3 API for automated mobile money deposits, withdrawals, and collections across MTN, M-Pesa, Airtel, Orange, Wave, and affiliated networks;

WHEREAS, MFIAT holds a verified, active Flutterwave merchant account with live API credentials (Public Key, Secret Key, Encryption Key) and has represented to IFB that said account is in full regulatory compliance, KYB-verified, and operationally active;

WHEREAS, the Parties wish to formalize a strategic partnership whereby MFIAT contributes its Flutterwave infrastructure to the IFB platform in exchange for a conditional equity stake in IFB, subject to the conditions set forth herein;

NOW, THEREFORE, the Parties agree as follows:

1. OBLIGATIONS OF MFIAT (Party B)

MFIAT agrees to deliver to IFB, within **fourteen (14) calendar days** of execution of this MOU, the following, in full and without reservation:

1.1 Corporate Documentation Package — Complete and certified copies of:

- Certificate of Incorporation and all registration documents
- Memorandum and Articles of Association
- Register of Directors and beneficial owners (including Emeka Ojobo and all parties holding ≥5% interest)
- Tax Identification Number and current tax compliance certificate
- Any existing financial licenses, payment processor agreements, or regulatory approvals
- Proof of registered business address and operational status

1.2 Flutterwave API Credentials & Access — Full and unencumbered:

- Live V3 Public Key, Secret Key, and Encryption Key for integration into the IFB/DEUS platform
- Written confirmation that MFIAT's Flutterwave account permits third-party platform integration
- Webhook configuration access and cooperation for IFB's production deployment
- Upgrade from test to live API environment within 7 days of IFB's technical readiness confirmation
- Immediate notification to IFB of any account suspension, restriction, or regulatory action by Flutterwave

1.3 Ongoing Obligations — For the duration of this agreement, MFIAT shall:

- Maintain the Flutterwave merchant account in good standing, current, and compliant
- Not transfer, encumber, revoke, or restrict IFB's API access without 30 days' written notice
- Cooperate fully with any KYB, AML, or compliance audit requested by IFB or its regulators

- Provide monthly confirmation that the account remains active and unrestricted
- Notify IFB within 24 hours of any material change to account terms, fees, or capabilities

2. OBLIGATIONS OF IFB (Party A)

2.1 IFB shall integrate MFIAT's Flutterwave credentials into the DEUS platform for mobile money deposits, withdrawals, and collections across IFB's user base in Africa.

2.2 IFB shall not share MFIAT's Flutterwave credentials with any third party outside the IFB/DEUS technical infrastructure without MFIAT's written consent.

2.3 IFB shall credit all Flutterwave transaction settlements to IFB's designated settlement account and maintain accurate records of all transactions processed via MFIAT's credentials.

2.4 IFB shall provide MFIAT with monthly transaction volume reports for transparency and regulatory compliance purposes.

3. CONDITIONAL EQUITY GRANT

3.1 Grant. Subject strictly to the conditions in Clause 3.2, IFB agrees to issue to MFIAT (or its nominee) **one point five percent (1.5%)** of IFB's issued and outstanding equity (the "Equity Interest"), representing a founding-tier strategic stake in the DEUS platform.

3.2 Conditions Precedent. The Equity Interest shall NOT vest and shall NOT be issued unless and until ALL of the following conditions are satisfied in full:

#	Condition	Verification Method
(a)	MFIAT has delivered the complete Corporate Documentation Package per Clause 1.1	IFB legal review & sign-off
(b)	Flutterwave live API is fully functional on the DEUS platform for ≥30 consecutive days	Technical QA confirmation by IFB engineering
(c)	Mobile money deposits AND withdrawals are processing without API errors across ≥3 African networks	Live transaction logs
(d)	Flutterwave account is confirmed KYB-verified and in regulatory good standing	Written confirmation from Flutterwave or MFIAT compliance documents
(e)	No adverse legal, regulatory, or financial claims exist against MFIAT	MFIAT statutory declaration
(f)	MFIAT has upgraded IFB's integration to live (production) credentials	IFB engineering confirmation

3.3 Vesting. Upon satisfaction of all Conditions Precedent, the 1.5% Equity Interest shall vest immediately and IFB shall execute a formal Share Subscription Agreement documenting the equity transfer.

3.4 Forfeiture. If any Condition Precedent is not satisfied within **ninety (90) days** of this MOU's execution date, or if MFIAT's Flutterwave account is suspended, terminated, or restricted by Flutterwave for any reason attributable to MFIAT's conduct, the Equity Interest shall be forfeited in full with no compensation owed.

3.5 No Monetary Consideration. The 1.5% equity grant constitutes the entirety of IFB's consideration to MFIAT under this MOU. No cash, salary, retainer, or other monetary compensation is owed to MFIAT by IFB.

4. REPRESENTATIONS & WARRANTIES

Each Party represents and warrants that: (a) it has full legal authority to enter into this MOU; (b) this MOU does not violate any existing agreement, law, or regulation binding on it; (c) all information provided is accurate, complete, and not materially misleading.

MFIAT additionally represents and warrants that: (a) it holds the Flutterwave account legally and in its own name; (b) no third party has superior rights to said account; (c) MFIAT is not currently under investigation, sanction, or enforcement action by any financial regulator; (d) Emeka Ojobo is duly authorized to execute this MOU on behalf of MFIAT.

5. CONFIDENTIALITY

Both Parties agree to treat as strictly confidential all API credentials, technical architecture, user data, financial terms, and proprietary information shared under this MOU. Neither Party shall disclose such information to any third party without prior written consent. This obligation survives termination of this MOU for a period of **five (5) years**.

6. INTELLECTUAL PROPERTY

All technology, code, integrations, and platform improvements built by IFB using MFIAT's Flutterwave credentials remain the sole intellectual property of IFB. MFIAT acquires no rights to IFB's codebase, platform architecture, or user data by virtue of this agreement.

7. TERM & TERMINATION

7.1 Term. This MOU is effective from the date of execution and shall remain in force for **twelve (12) months**, renewable by mutual written agreement.

7.2 Termination by IFB. IFB may terminate this MOU with **14 days' written notice** if: MFIAT fails to deliver any required documentation; the Flutterwave API becomes non-functional due to MFIAT's actions or inactions; any representation by MFIAT is found to be false or materially misleading; or MFIAT is dissolved, insolvent, or subject to regulatory sanction.

7.3 Effect of Termination. Upon termination prior to vesting, no equity shall be issued. IFB retains all rights to seek alternative Flutterwave merchant arrangements. All API credentials provided by MFIAT shall be returned or destroyed by IFB within 7 days.

8. DISPUTE RESOLUTION & GOVERNING LAW

This MOU shall be governed by the laws of **Ontario, Canada**. Any dispute arising from or relating to this MOU shall first be subject to good-faith negotiation for 30 days. If unresolved, disputes shall be referred to binding arbitration under the ADR Institute of Canada rules, with proceedings conducted in English in Toronto, Ontario.

9. ENTIRE AGREEMENT

This MOU constitutes the entire agreement between the Parties on its subject matter and supersedes all prior discussions, representations, or understandings. Amendments require written consent of both Parties.

SIGNATURES

By signing below, each Party confirms they have read, understood, and agreed to the terms of this Memorandum of Understanding.

FOR AND ON BEHALF OF INFINITE FUTURE BANK (IFB)

Signature: _____

Name: **Sapiens N databaye**

Title: Founder & Chief Executive, Infinite Future Bank / DEUS Platform

Date: _____

Email: sapiens@infinitefuturebank.org

FOR AND ON BEHALF OF MFIAT TECHNOLOGY LIMITED

Signature: _____

Name: **Emeka Ojobo**

Title: Authorized Representative, MFIAT Technology Limited

Date: _____

Email: _____

Company Registration Number: _____

Registered Address: _____

This document is a Memorandum of Understanding and creates binding obligations on the Parties as stated herein. Both Parties are advised to seek independent legal counsel before signing.

Prepared: September 2026 / Reference: IFB-MOU-MFIAT-2026-001